

MARKETING AGENCY SERVICES AGREEMENT

This Marketing Agency Services Agreement ("Agreement") is entered into as of January 15, 2025, by and between Zement Stone, a Colorado corporation with its principal place of business in Denver, Colorado ("Client"), and RockSolid Marketing Inc., a Colorado corporation ("Agency"). Client and Agency may be referred to individually as a "Party" and collectively as the "Parties."

1. SERVICES

Agency shall provide the following marketing services to Client during the term of this Agreement: (a) monthly social media management across three (3) platforms, including content creation and scheduling of up to twelve (12) posts per month per platform; (b) search engine optimization services, including keyword research, on-page optimization, and monthly performance reporting; (c) email marketing campaign development and deployment, up to two (2) campaigns per month; (d) quarterly marketing strategy review and reporting; and such other marketing services as requested by Client. Any work falling outside the foregoing categories shall be documented in a written Statement of Work signed by both Parties.

2. COMPENSATION

Client shall pay Agency a monthly retainer of Four Thousand Five Hundred Dollars (\$4,500) per month, invoiced on the first business day of each month and due within thirty (30) (30) days of receipt. Any rate adjustment shall require the mutual written agreement of both Parties. Late payments not received within forty-five (45) days of the invoice date may accrue interest at a rate of 0.75% per month on the outstanding balance.

3. EXPENSES

Agency shall be responsible for its own ordinary business expenses. Any third-party expenses (such as paid media spend, stock photography licensing, or specialized software purchases) shall be pre-approved by Client in writing and reimbursed at cost without markup, supported by receipts.

4. TERM AND RENEWAL

The initial term of this Agreement shall be twelve (12) months commencing on the Effective Date (the "Initial Term"). Thereafter, this Agreement shall automatically renew for successive twelve (12) month periods unless either Party provides written notice of non-renewal at least ten (10) days prior to the end of the then-current term.

5. TERMINATION FOR CAUSE

Either Party may terminate this Agreement for material breach upon thirty (30) days' written notice, provided that the breaching Party has not cured such breach within the notice period. Upon termination, Client shall pay for all services performed through the effective date of termination.

6. OWNERSHIP OF WORK PRODUCT

All deliverables, creative materials, and work product developed by Agency specifically for Client under this Agreement shall, upon full payment, become the exclusive property of Client. Agency retains ownership of its pre-existing tools, templates, and methodologies.

7. CONFIDENTIALITY

Each Party agrees to maintain in confidence all non-public information disclosed by the other Party and to use such information solely for purposes of performing this Agreement. This obligation shall survive termination for a period of two (2) years.

8. LIMITATION OF LIABILITY

Neither Party's aggregate liability under this Agreement shall exceed the total fees paid by Client to Agency in the three (3) months preceding the event giving rise to the claim. Neither Party shall be liable for indirect, incidental, or consequential damages.

9. GOVERNING LAW AND VENUE

This Agreement shall be governed by the laws of the State of Colorado. Any dispute arising hereunder shall be resolved exclusively in the state or federal courts located in Denver County, Colorado.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the Parties and supersedes all prior agreements relating to the subject matter herein. Amendments must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

ZEMENT STONE ROCKSOLID MARKETING INC.

By: _____ By: _____

Name: Name:

Title: Title: